

1-2. 21CV03075 Hall, Chantelle v. City of Chico

EVENT: (1) Motion to Compel Initial Production of Documents and Interrogatory Responses from the City of Chico

(2) Motion to Compel Further Interrogatory and RFA Responses from the City of Chico

The fundamental dispute here is whether all of the documents associated with these discovery motions were personally served on August 11th as declared by the process server, or only a portion of the moving papers were served on defense counsel as represented in the opposition and the declaration of the secretary Laura Perez.

The declaration of the process server indicates a person by the name of Emily Tran was personally served. The supplemental opposition, which appears to have been filed roughly 10 hours after the reply, does not mention Emily Tran once despite the reply noting that she was served with the papers according to the process server declaration. Because defense counsel does not dispute Ms. Tran's association with the firm, the Court concludes Ms. Tran was served with the documents.

The opposition rests on the declaration of secretary Laura Perez. However, she does not have personal knowledge of what was served by the process server, only Ms. Tran does. The filing of a proof of service creates a rebuttable presumption that the service was proper. (*Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795) Here, there is no declarant with personal knowledge contradicting the process server's declaration that all relevant documents were served.

As a result, the Court finds defense counsel has not rebutted the presumption of proper service. Accordingly, the Court finds service was proper.

As to the merits, the City has submitted egregiously late separate statements in opposition to the motion seeking further responses. (The City's brief does not address the motion seeking initial responses) Those filings will not be considered.

As a result, the Court is granting both motions as unopposed. The City is ordered to provide further form interrogatory and RFA Responses and initial responses to production and special interrogatory responses within 10 days.

As to Plaintiff's request for an evidentiary sanction, the request is denied at this time. If Plaintiff makes a subsequent request in the future, the motion needs to identify with specificity the suggested evidentiary sanction so that the City has an opportunity to address the same.

Note: In the interests of avoiding confusion, going forward Plaintiff's counsel should ensure the precise identification of the discovery requests is included in the captions of the briefs. For example, instead of generic reference to interrogatories, specify whether it is form interrogatories or special interrogatories as well as the set number.

Plaintiff shall prepare the form of order.

3-4. 22CV02786 TA v. California Southern Baptist Convention et al.

*EVENT: Thermalito Baptist Church's Motion to Compel Deposition Attendance of Plaintiff
(Continued from 8/12/26)*

Thermalito Baptist Church's Motion to Compel Deposition Attendance of Plaintiff is GRANTED as unopposed. Sanctions are awarded to Defendant in the amount of \$2,300.00, payable within 20 days. Plaintiff is ordered to appear at the next scheduled deposition.

CRC 3.1010 places the burden on Defendant to make all necessary accommodations. The motion is silent as to what, if any, communications were had with Plaintiff (other than mailing the deposition notice) concerning how the deposition was to take place, or what arrangements were needed. There is no evidence of any communication either before or after the deposition.

Had the deposition notice provided a physical location for the deposition, the Court would not necessarily expect extensive pre-deposition communications with Plaintiff. But when a pro per is noticed for a remote deposition, one would expect there to be some pre deposition communication regarding logistics.

Defendant shall prepare the form of order.

5. 24CV02216 Garbolinsky, Greg v. Gillingham, Jeffrey Duke Paul et al.

EVENT: Defendants' Motion for Admissions Be Deemed Admitted, for Monetary Sanctions, and for Terminating Sanctions

Defendants' Motion for Admissions Be Deemed Admitted, for Monetary Sanctions, and for Terminating Sanctions is GRANTED. The fact Plaintiff has abandoned the case combined with his failure to respond to discovery warrant terminating sanctions. Sanctions are awarded in the amount of \$1,750.00. The Court will sign the proposed order with this modification.